

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alfredo Gonzalez	Team: Squad #03	CCRB Case #: 201710085	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Sunday, 11/05/2017 4:12 PM	Location of Incident: 120th Precinct stationhouse	18 Mo. SOL 5/5/2019	Precinct: 120
Date/Time CV Reported Wed, 12/06/2017 3:22 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 12/06/2017 3:22 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christopher Distefano	12584	959604	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT James Hansen	02167	947062	120 PCT
2. POM Angelo Fallacaro	21598	959624	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christopher Distefano	Force: Police Officer Christopher Distefano used physical force against § 87(2)(b)	A . Exonerated
B . POM Christopher Distefano	Off. Language: Police Officer Christopher Distefano made remarks to § 87(2)(b) based upon race.	B . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB, in person, on December 6, 2017.

On November 5, 2017, at approximately 4:12 p.m., § 87(2)(b) was arrested by PO Christopher Distefano and PO Angelo Fallacaro, of the 120th Precinct, for an alleged assault, and was subsequently transported to the 120th Precinct stationhouse. Officers requested an ambulance for § 87(2)(b) while at the stationhouse. As PO Distefano was placing leg shackles on § 87(2)(b) he allegedly stepped on § 87(2)(b)'s foot with significant force (**Allegation A: Force, exonerated**). Afterward, PO Distefano allegedly stated to § 87(2)(b) that black people were “ignorant” and that § 87(2)(b) could not afford to live at her apartment (**Allegation B: Offensive Language, unsubstantiated**). § 87(2)(b) was transported to § 87(2)(b) in Staten Island. § 87(4-b), § 87(2)(g)

There was no video footage available for this incident.

Findings and Recommendations

Allegation (A) Force: Police Officer Christopher Distefano used physical force against

§ 87(2)(b)

It is undisputed that PO Distefano placed his foot over § 87(2)(b)'s foot;

§ 87(2)(g)

§ 87(2)(b) stated that she was arrested for biting the hand of a male who was intoxicated and had attempted to enter her residence. PO Fallacaro and PO Distefano arrested § 87(2)(b) and transported her to the 120th Precinct stationhouse. Thirty minutes after § 87(2)(b) was lodged in a female holding cell, she began “making noise” by picking up the bench that was inside the cell and slamming it down “real hard” on the floor. § 87(2)(b) performed said action for ten minutes before PO Distefano, PO Fallacaro, and Sgt. James Hansen arrived to the holding cell. § 87(2)(b) informed Sgt. Hansen that she needed her medication for her bipolar disorder, so Sgt. Hansen called an ambulance so that she could go to the hospital to get medicated. PO Distefano removed § 87(2)(b) from the cell and escorted her downstairs, where she was made to sit down near the sergeant’s desk as she waited for the ambulance. While § 87(2)(b) was sitting down, PO Distefano placed leg shackles on her. § 87(2)(b) did not attempt to prevent PO Distefano from putting them on and she denied exhibiting any resistance at any point during the incident. Without warning, PO Distefano then allegedly stepped on § 87(2)(b)'s left big toe with significant force as he was facing her, which caused her pain. Afterward, § 87(2)(b) was transported to § 87(2)(b). On § 87(2)(b) she went to § 87(2)(b) because of pain to her toe, during which she informed hospital staff that an officer had assaulted her. § 87(2)(b)

PO Distefano stated that when § 87(2)(b) was brought downstairs to be transported, she was made to sit down in a chair in front of the sergeant’s desk. Per NYPD procedure, prisoners that go from the stationhouse to the hospital must be placed in leg shackles. He added that he was taught in the police academy to put his foot on the prisoner’s foot as a precaution, “just so you don’t get kicked in the face.” PO Distefano put his foot on the top of § 87(2)(b)

§ 87(2)(b)'s shoe, on the space between the toes and the end of the shoes, for approximately five seconds. PO Distefano denied that he applied a substantial amount of force when placing his foot over § 87(2)(b)'s, he denied that he caused her pain, and he denied that he applied enough force to cause an injury. After PO Distefano stepped on her foot, § 87(2)(b) became irate and started yelling and cursing and asking why he had done that. PO Distefano explained to § 87(2)(b) that he did it as a safety precaution to prevent an injury. PO Distefano then placed the leg shackles on § 87(2)(b). PO Distefano did not know if § 87(2)(b) provided physical resistance while he was placing the leg shackles on her. § 87(2)(b) did not complain about having issues with her foot prior to this, but she did complain that her foot hurt after PO Distefano placed his foot on top of hers.

PO Fallacaro acknowledged that PO Distefano placed his foot over § 87(2)(b)'s foot as he placed leg shackles on her to be transported, but he denied that he used any substantial force when doing so. PO Fallacaro also recalled that § 87(2)(b) stated, "Ow. Why are you stepping on my foot?" when PO Distefano placed his foot over hers, after which PO Distefano explained that he was doing it as a precaution. § 87(2)(b) did not further complain of any foot pain after that initial comment. Sgt. Hansen had no recollection of this incident.

The Medical Treatment of Prisoner Report, which was completed by PO Fallacaro, noted that § 87(2)(b) was taken to § 87(2)(b) because she complained of foot pain and because she wanted medication (BR 01).

§ 87(2)(a) PHL § 18(6)

[REDACTED]

Force may be used when it is reasonable to ensure the safety of a member of the service, or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. NYPD Patrol Guide, Section 221-01 (BR 02).

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended that **Allegation A** be **exonerated**.

Allegation (B) Offensive Language: Police Officer Christopher Distefano made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) stated that she and PO Distefano “had some words” after he placed leg shackles on her. When asked for clarification, she stated that it was “more of a black and white thing,” and that PO Distefano was “prejudice” and that he does not “like black people.” When asked what specific statements PO Distefano made in regards, § 87(2)(b) stated that PO Distefano told her that “black people are ignorant” and that she could not afford to live in her apartment. When asked how she interpreted PO Distefano’s latter statement, § 87(2)(b) stated that she believed PO Distefano was suggesting that she was not good enough to live where she was living. § 87(2)(b) identified Sgt. Hansen as being present at the moment PO Distefano allegedly made the offensive remarks.

PO Distefano denied that he told § 87(2)(b) that black people were ignorant, he denied that he told § 87(2)(b) that she was not good enough to live in her apartment, and he denied that he made any disparaging comments based on § 87(2)(b)’s race. PO Fallacaro denied that PO Distefano made any disparaging remarks to § 87(2)(b) based upon her race, and he did not state that she could not afford to live where she lived. Sgt. Hansen did not have any recollection of this incident.

§ 87(2)(g)
It is therefore recommended that **Allegation B** be **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to four CCRB complaints and has been named as a victim in seven allegations (BR 05).
 - § 87(2)(b)
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- PO Distefano has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation.
- As of March 13, 2018, the New York City Comptroller’s office has no record of a Notice of Claim being filed in regards to this complaint (BR 06).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date